

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,  
vs.

Case No.: 2018 CA 000543  
Division: "E"

MARC M. MOSZKOWSKI  
Defendant.

**MOTION FOR IDENTIFICATION OF RECORD BASIS AND  
CALCULATION OF PREJUDGMENT INTEREST; CERTIFICATION OF  
NO EX PARTE COMMUNICATIONS; AND, IF NONE, TO STRIKE  
INTEREST ADD-ON**

**Defendant, pro se**, moves for an order (1) identifying the record basis and complete calculation of the \$290,461.73 prejudgment-interest figure, (2) directing the filing of a schedule showing start/stop dates, statutory rates by period, and the method of calculation, and (3) requiring a certification that no ex parte communications supplied the figure. If no competent, on-record basis exists, the Court should **strike** the prejudgment-interest add-on.

**Grounds**

1. **No on-record calculation.** The Final Judgment states "Prejudgment interest in the amount of \$290,461.73 is awarded..." but includes no

dates, rates, method, or schedule to show how that sum was derived. Florida applies statutory judgment interest rates set by the CFO and adjusted quarterly; any calculation must disclose the periods and rates used so the number is auditable. See Florida CFO's official rate table (e.g., 8.90% effective July 1, 2025).

2. **Required findings cannot be inferred.** Courts may award prejudgment interest under Florida's "loss theory," but the math still must be discernible on the record (principal, accrual date(s), applicable statutory rates per period, and method). See general Florida authority describing prejudgment interest and statutory rates.
3. **Ex parte concerns must be cured by certification and disclosure.** Outside limited scheduling/administrative exceptions, ex parte communications on the merits are prohibited, and any permitted ex parte contact must be disclosed to all parties. The Court should certify that no ex parte communications supplied the prejudgment-interest figure; to the extent any off-record material was considered, it must be promptly filed and an opportunity to respond provided. See Florida Code of Judicial Conduct, Canon 3 (ex parte communications).

## **Requested Relief**

Defendant respectfully requests an order that:

**A.** Directs Plaintiffs (or the Court, if it performed the math) to file within 10 days a Prejudgment-Interest Schedule that: (i) identifies the principal on which interest was computed; (ii) states the accrual start date(s) and end date; (iii) lists the statutory interest rate for each applicable period; and (iv) shows the method used to arrive at \$290,461.73 (including any compounding assumptions);

**B.** Requires a Certification of Compliance with Canon 3 (Ex Parte) stating that no ex parte communication supplied the prejudgment-interest sum; and that all materials considered are now filed of record;

**C.** Provides that, if the calculation came from any off-record submission, that material must be filed forthwith, and Defendant shall have 10 days to respond;

**D.** If no competent, on-record basis is filed within the time allowed, STRIKES the \$290,461.73 prejudgment-interest add-on from the Final Judgment.

**Decision on the papers (no hearing requested).**

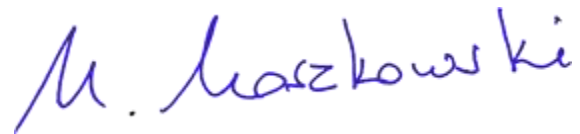
Respectfully submitted this 8<sup>th</sup> day of September, 2025

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Le Verdos

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### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 8<sup>th</sup> day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

